

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF ALBANY

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*In the Matter of the Application of*

ORGANIC BLOOMS, LLC, NIAGARA NUGGET, LLC,  
BLACKMARK, LLC, and WINDWARD MANAGEMENT,  
LLC

*Petitioners-Plaintiffs,*

**ANSWER**

*For a Judgment Pursuant to Article 78 of the Civil Practice  
Law and Rules and a Declaratory Judgment Pursuant to  
CPLR 3001*

Index No. 904497-24

-against-

NEW YORK STATE CANNABIS CONTROL BOARD and  
NEW YORK STATE OFFICE OF CANNABIS  
MANAGEMENT,

*Defendant-Respondent.*

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Defendants-Respondents New York State Cannabis Control Board and New York State Office of Cannabis Management (together the “Respondents”), by their attorney, Letitia James, the Attorney General of the State of New York, Ryan W. Hickey, Assistant Attorney General, of counsel, answer the Verified Amended Class Petition and Complaint dated May 2, 2025 (“the Petition”) as follows:

1. Paragraph 1 of the Petition contains a summary of the nature of the case, to which no response is required. To the extent the allegations of Paragraph 1 imply any wrongdoing by Respondents, they are denied.
2. Deny the allegations contained in paragraph 2 of the Petition.
3. Deny knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 3 of the Petition.

4. Deny knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 4 of the Petition.

5. Deny knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 5 of the Petition.

6. Deny knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 6 of the Petition.

7. In response to the allegations contained in paragraph 7 of the Petition, refer to the applicable statutory and regulatory for the best and most complete statement of the Cannabis Control Board's authority and responsibilities, and deny the allegations of this paragraph to the extent they are inconsistent therewith.

8. In response to the allegations contained in paragraph 8 of the Petition, refer to the applicable statutory and regulatory for the best and most complete statement of the Cannabis Control Board's authority and responsibilities, and deny the allegations of this paragraph to the extent they are inconsistent therewith.

9. Paragraph 9 of the Petition consists of legal argument, to which no response is required. Respondents respectfully refer all questions of law to the Court and deny the allegations of this paragraph to the extent they allege or imply any wrongdoing by Respondents.

10. Paragraph 10 of the Petition is a statement of subject matter jurisdiction, to which no response is required. To the extent any response is required, deny the allegations in paragraph 10 of the Petition.

11. Paragraph **11** of the Petition is a statement of venue, to which no response is required. To the extent any response is required, deny the allegations in paragraph 11 of the Petition.

12. Admit the allegations contained in paragraph **12** of the Petition.

13. In response to the allegations contained in paragraph **13** of the Petition, refer to the cited statute for the best and most complete evidence of its content and meaning, and deny the allegations of this paragraph to the extent they are inconsistent therewith.

14. In response to the allegations contained in paragraph **14** of the Petition, refer to the cited regulation for the best and most complete evidence of its content and meaning, and deny the allegations of this paragraph to the extent they are inconsistent therewith.

15. In response to the allegations contained in paragraph **15** of the Petition, refer to the cited statute for the best and most complete evidence of its content and meaning, and deny the allegations of this paragraph to the extent they are inconsistent therewith.

16. Deny the allegations contained in paragraph **16** of the Petition..

17. Deny the allegations contained in paragraph 17 of the Petition, except admit that from August 25, 2022, through September 26, 2022, the Office accepted applications for Conditional Adult-Use Retail Dispensary (“CAURD”) licenses, the first set of adult-use retail cannabis dispensary licenses issued in New York State.

18. Deny the allegations contained in paragraph 18 of the Petition, except admit that the application window for all license types (retail, microbusiness, cultivator, distributor, etc.) opened on October 4, 2023 and closed on December 18, 2023.

19. Deny the allegations contained in paragraph 19 of the Petition.

20. In response to the allegations contained in paragraph **20** of the Petition, admit that Petitioners-Plaintiffs (hereinafter “Petitioners”) applied for adult use retail dispensary licenses, but deny the characterization that Petitioners “complied with all rules and requirements for their respective licensure applications.”

21. Deny the allegations contained in paragraph 21 of the Petition.

22. Deny the allegations contained in paragraph 22 of the Petition.

23. Deny the allegations contained in paragraph **23** of the Petition.

24. In response to the allegations contained in paragraph **24** of the Petition, Respondents repeat and re-allege all previous responses as if fully set forth herein.

25. Paragraph **25** of the Petition is a statement of law to which no response is required. Respondents respectfully refer all questions of law to the Court and deny the allegations of this paragraph to the extent they allege or imply any wrongdoing by Respondents.

26. Deny the allegations contained in paragraph **26** of the Petition.

27. Deny the allegations contained in paragraph **27** of the Petition.

28. Deny the allegations contained in paragraph **28** of the Petition.

29. Deny the allegations contained in paragraph **29** of the Petition.

30. Deny the allegations contained in paragraph **30** of the Petition.

31. Deny the allegations contained in paragraph **31** of the Petition.

32. In response to the allegations contained in paragraph **32** of the Petition, Respondents repeat and re-allege all previous responses as if fully set forth herein.

33. Deny the allegations contained in paragraph **33** of the Petition.

34. Deny the allegations contained in paragraph **34** of the Petition.

35. Deny the allegations contained in paragraph **35** of the Petition.
36. Deny the allegations contained in paragraph **36** of the Petition.
37. Deny the allegations contained in paragraph **37** of the Petition.
38. Deny knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph **38** of the Petition.
39. Deny that Petitioners are entitled to any form of relief in this action, including the relief requested in the “WHEREFORE” clause of the Petition and it’s subsections.
40. Deny any allegation of the Petition not specifically responded to above.

### **ADMINISTRATIVE RECORD**

The following constitute the administrative record, and are attached to the accompanying Affirmation of Patrick McKeage

- A. Completing Your CAURD Application FAQ;
- B. Conditional Adult-Use Retail Dispensary (CAURD) FAQ – Completing Your CAURD Post-Selection Application;
- C. CAURD Interest Location Survey;
- D. Press Release dated June 22, 2022 entitled “Governor Hochul Announces Major Progress Toward Advancing Equity in Cannabis”;
- E. Notification to Municipalities of Adult-Use Retail Dispensary or On-Site Consumption License;
- F. Conditional Adult-Use Retail Dispensary Post-Selection Application Mockup;
- G. State Requirements for Adult-Use Retail Dispensary Licensees;

- H. Office of Cannabis Management Retail and Microbusiness Non-Provisional Adult-Use Application Queue October 4, 2023 – November 17, 2023;
- I. General Licensing Application Frequently Asked Questions;
- J. Petitioner Organic Blooms, LLC's License Certificate;
- K. Licensing Communication re Application # OCMRETL-2023-001589 (Blackmark LLC) dated September 16, 2025; and
- L. Licensing Communication re Application # OCMRETL-2023-001729 (Windward Management LLC) dated January 31, 2025.

### **OBJECTIONS IN POINT OF LAW**

- 1. The Petition fails to state a cause of action.
- 2. Petitioners Organic Blooms, LLC, Blackmark LLC, and Windward Management, LLC's claims are moot.
- 3. All actions taken by the Respondents have been consistent with their lawful duties and were not arbitrary, capricious, an abuse of discretion, or otherwise contrary to law.
- 4. All actions taken by the Respondents were rationally based in fact.
- 5. Petitioners request for a declaratory judgment must be denied and the Court should enter declaratory judgment in Respondents' favor.

**WHEREFORE**, the Respondents respectfully request that the relief requested in the Petition be denied, that the Petition and this proceeding be dismissed, and that they be awarded costs and disbursements, together with such other relief as may be right and just.

Dated: Albany, New York  
June 12, 2026

LETITIA JAMES  
Attorney General of the State of New York  
*Attorney for Respondents*  
The Capitol  
Albany, New York 12224-0341

*s/Ryan W. Hickey*  
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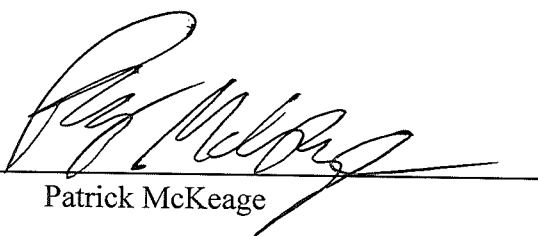
To: Counsel of record (*Via NYSCEF*)

**VERIFICATION**

I, Patrick McKeage, am Director of Regulatory Operations for the New York State Office of Cannabis Management. I have personally reviewed the Agency Record submitted with Respondents' Answer and hereby certify that it is an accurate record of the proceedings under consideration. I have read the foregoing Answer. The same is true to my knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.

I make this verification pursuant to CPLR 3020(d)(2), because Respondent is an agency of the State of New York, and I am acquainted with the facts of this proceeding.

Dated: Albany, New York  
June 12, 2026

By:   
Patrick McKeage